

Power of Interest
Code of Conduct for Directors and Charity Trustees

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For the purposes of this Code, all Directors are also Charity Trustees and owe the legal duties of trustees under charity law. By reading this document and accepting the role of a company director of Power of Interest (POI), all Directors agree to the following responsibilities:

General Conduct

- Directors are required to act with honesty and integrity and exercise good judgement which may include seeking professional advice on appropriate matters on which Directors do not have relevant expertise.
- Directors are required to act in the best interests of the charity at all times.
- Act with reasonable care and skill.

Independence

- Directors are required to act independently, particularly in relation to assets, property, legal and regulatory obligations.

- Directors should conduct themselves with integrity and in a manner which does not damage or undermine the reputation of the charity or its volunteers and employees. More specifically Directors:
 - should not place themselves under any financial or other obligation to outside individuals or organisations that might seek to influence them in the performance of their duties;
 - must avoid actual, potential or perceived conflicts or conduct that could reasonably undermine confidence in the charity.
- Directors must not act in order to gain financial or other benefits for themselves or for any persons connected to them such as their family, their friends, or any organisation that they own, manage or work for.
- Directors should avoid accepting gifts and hospitality that might reasonably be thought to influence them in carrying out their role as charity trustee. Any gifts or hospitality received in any connection to POI should not exceed the value of £50 and should be declared to the Board.

Company Director Roles

Directors should:

- share collective responsibility for decisions made by the Board. Once a decision has been properly made, Directors should support its implementation regardless of their individual views expressed during discussion.
- Understand and perform their roles and responsibilities to the best of their abilities at all times.

- Be prepared to provide adequate time and commitment as required to fulfil the role of company director, adequately preparing for meetings and participating in committees and special events when required.
- focus on governance, strategy and oversight and should avoid becoming involved in day-to-day operational decisions unless specifically authorised.

Board Meetings

Directors should:

- Attend meetings of the Board unless exceptional circumstances prevent attendance, and be available to attend more meetings as required, and provide support as required.
- Aim to attend all meetings, contribute appropriately and effectively, and avoid dominating the contributions of others.
- Respect the role of the Chair in facilitating meetings, ensuring all Directors are heard and decisions are reached effectively.
- Bring a fair and open-minded view to all discussions of the board, maintain a respectful balance between speaking and listening, treating different views with respect, and ensuring that all decisions are made in the best interests of the charity.
- Bring a genuinely independent perspective to enhance decision-making, given that Directors share responsibility for board decisions.
- Ensure their contributions are informed and impartial when presenting views on topics in meetings while listening to and respecting the input and experience of other Directors.

Volunteers/Employees within the Charity

Directors should:

- Aim to support volunteers and employees in carrying out their duties and always, in terms of their conduct, serve as an example of how everyone in the charity should conduct themselves in order to reflect the values of the charity.
- Work considerately and fairly with everyone in a way that respects diversity, different roles and boundaries and avoids giving offence.
- Accept and respect the difference in roles between the board on the one hand and volunteers and any employees on the other, ensuring that the board, volunteers and any employees work effectively and cohesively for the benefit of the charity and develop a mutually supportive and loyal relationship by:
 - respecting management arrangements and avoiding any actions that might undermine such arrangements;
 - not interfering in the performance by volunteers or employees of duties delegated to them within the charity while ensuring that volunteers and any employees working for the charity are held to account through the Chair or any delegated officer of the charity, as appropriate.

Legal Requirements and Policies

Directors must:

- Act in accordance with the charity's governing document and ensure that the charity complies with all applicable laws including charity law, company law, health and safety law, data protection law and employment law.

- Confidential information must not be disclosed except where authorised by the Board or where disclosure is required by law or by a regulator. However, the requirement for confidentiality may not apply if it becomes necessary for the company director to inform the Charity Commission for England and Wales or any other statutory body about any matter, which could threaten the future of the charity or could represent a breach of any law with which the charity is required to comply.
- Declare any actual, potential or perceived conflict of interest at the earliest opportunity and withdraw from discussions or decisions where required.
- Abide by any equality, diversity, safeguarding, health and safety, bullying and harassment policies and any other policies agreed by the board.
- Ensure that claims for out of pocket expenses are made in accordance with agreed procedures.
- Where a company director is found to be in breach of the standards outlined by the board in its Code of Conduct he or she will be asked to meet with the Chairperson of the board to assess his or her suitability for the role. Consistent breach of the Code of Conduct by a company director may result in the director's tenure being terminated.

The board of Directors and members should review this Code of Conduct for Directors at 3-year intervals or as appropriate.